

PROCLAMATION OF SALE
IN THE MATTER OF THE DEED OF ASSIGNMENT OF SALE AD PURCHASE AGREEMENT (FIRST/THIRD PARTY),
FACILITY AGREEMENT (HOUSING LOAN/HOME FINANCING) AND POWER OF ATTORNEY (FIRST/THIRD PARTY) ALL
DATED 19TH DAY OF JUNE 2023

Between AFFIN BANK BERHAD (CO. NO. 197501003274/25046-T) And SRITHARAN A/L MOHAN KUMAS (NRIC NO.: 820711-08-5631)	And	ASSIGNEE/BANK ASSIGNOR/BORROWER
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In the exercise of the rights and powers conferred upon the Assignee/Bank under the Matter **Deed of Assignment of Sale ad Purchase Agreement (First/Third Party), Facility Agreement (Housing Loan/Home Financing) and Power of Attorney (First/Third Party)** all dated 19th Day of June 2023 entered into between the Assignor/Borrower and the said Assignee/Bank it is hereby proclaimed that the Assignee/Bank with the assistance of the undermentioned Auctioneer will sell the property described below by:-

WILL SELL THE PROPERTY DESCRIBED BELOW BY
PUBLIC AUCTION
VIA ONLINE BIDDING
WEDNESDAY, THE 24TH JUNE, 2026, AT 11.00 AM IN THE MORNING,
AT ARENAAUCTIONEERS.COM

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(Bidder registration and payment of auction deposit must be made by 5pm, at least one (1) working day before auction date; otherwise the Auctioneer has the right to reject the registration. Bidders are advised to log in to the online bidding hyperlink provided and be on standby before the auction time) Bidders are further subject to the terms and conditions on arenaauctioneers.com

- NOTE:**
- (1) Prior to the auction sale, all intending bidders are advised to:-
(i) inspect the subject property (ii) conduct an official Subsidiary Title search (iii) enquire from the Developer/Proprietor and/or other relevant authorities as to whether the sale is open to all races or to Malaysian Citizens who are Bumiputras only (iv) obtain a copy of the Conditions of Sale from the Auctioneer and seek independent legal advice on all matters in connection with the auction sale, including the Conditions of Sale.
 - (2) This material is based upon information which we consider reliable. As it has been supplied by parties, we cannot represent that it is accurate or complete. As such it is subject to errors or omissions.

PARTICULARS OF TITLE

Strata Title No. & Lot No.	: Geran Mukim 9672/M1B/23/957, Lot 82478
Mukim/District/State	: Batu / Kuala Lumpur / Wilayah Persekutuan Kuala Lumpur
Developer's Parcel No.	: Parcel No. B-22-12, (Type A), Storey No. 22nd Floor, Building No. Block B together with Accessory Parcel No. A1337, A1379 & A2978, Residensi Minest
Tenure	: Term in Perpetuity
Land Area	: 1239 sq. ft / 115.11 sq. m
Category of Land Use	: "Bangunan"
Express Conditions	: "Tanah ini hendaklah digunakan untuk bangunan kediaman bagi tujuan pangsapuri sahaja"
Restriction In Interest	: "Tiada."
Vendor	: MI NEST DEVELOPMENT SDN BHD (1075392-X)
Developer	: MI NEST DEVELOPMENT SDN BHD (1075392-X)
Registered Proprietor	: MI NEST DEVELOPMENT SDN BHD (1075392-X)
Beneficial Owner	: SRITHARAN A/L MOHAN KUMAS (NRIC NO.: 820711-08-5631)
Encumbrance	: Assigned to AFFIN BANK BERHAD (Co. No. 197501003274/25046-T)

LOCATION AND DESCRIPTION:

The subject property is an apartment unit bearing postal address **Unit No. B-22-12, Residensi Minest, No. 62, Jalan Sinar Sentul 4, Sentul, 51000 Kuala Lumpur, Wilayah Persekutuan Kuala Lumpur**

RESERVE PRICE:

The property will be sold on an "as is where is" basis and subject to a reserve price of **RM540,000.00 (RINGGIT MALAYSIA: FIVE HUNDRED FORTY THOUSAND ONLY)**, subject to the Conditions of Sale and by way of an Assignment from the Assignee subject to consent being obtained by the successful bidder ("the Purchaser") from the relevant authorities, if any, including all terms, conditions, stipulations and covenants which were and may be imposed by the relevant authority. **Apportionment on any arrears of quit rent, assessment rate and maintenance charges ONLY which is lawfully due i.e which is unpaid for up to maximum 6 years preceding the successful auction date in respect of the property up to the date of sale shall be paid by the Bank upon receipt of full auction proceeds and any such sums due and payable after the date of sale shall be borne by the Purchaser. Successful Bidder is urge to submit their claim to the Bank within sixty (60) days from the date of payment of balance purchase money (or any extended period allowed by the Bank); any subsequent claims made thereunder will not be entertained by the Bank and the same shall be borne by the Purchaser solely. The Assignee/Lender shall not be liable to make payment or to deduct from the proceeds of sale any outstanding utilities/bills relating to the property namely water, electricity, telephone, gas or sewerage charges, administration charges and other utilities.**

All other fees, costs and charges relating to the transfer and assignment of the property including any revival cost for abandoned project (if any) shall also be borne solely by the successful Purchaser. Intending Purchaser shall make his own inquiries in respect thereof and the Purchaser shall be deemed to have full knowledge of the same. Online bidders are further subject to the Online Terms & Conditions on arenaauctioneers.com.

DEPOSIT:

All intending bidders are required to deposit ten per cent (10%) of the Reserve Price or any sum exceeding 10% of the purchase price or a minimum of **RM2,500.00 whichever is higher ("the Bidding Deposit")** for the said property by bank draft only in favour of **AFFIN BANK BERHAD**, latest by 5 PM, at least **ONE (1) WORKING DAY BEFORE THE AUCTION DAY** and the balance of the purchase money shall be paid by the Purchaser within **ninety (90) days** from the date of auction sale to **AFFIN BANK BERHAD**. Online bidders please refer to the Online Terms & Conditions on arenaauctioneers.com on the manner of payment of the deposit.

For further particulars, please apply to **Messrs Azra Salleh Akma & Co., Solicitors for the Assignee/Bank**, at **21-1-1 & 21-1-2, Jalan Semarak Api 2, Block E, Diamond Square Business Centre, Off Jalan Gombak, 53000 Kuala Lumpur (Ref No.: AS/LIT/ABB/1651/26) (Tel No.: 03-40237079)** or the undermentioned Auctioneer:-

ARENA AUCTIONEERS SDN. BHD. (201401016251 (1092337-X))

ADDRESS	: No. 20-2, Jalan Matahari AB U5/AB, Seksyen U5, Bandar Pinggiran Subang, 40150 Shah Alam, Selangor.
TEL NO.	: 03-7845 5890 / 03-7842 2137 / 03-7832 4047,
EMAIL	: aasb@arenaauctioneers.com ,
REF NO.	: AASB2775/AFFIN/184/030/26-N02(BK-2)

WEBSITE : arenaauctioneers.com
LOT ID : 73446

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[Licensed Auctioneers]
012-327-5047

PERISYTIHARAN JUALAN

DALAM PERKARA MENGENAI SURAT IKATAN PENYERAHAN HAK PERJANJIAN JUAL DAN BELI (PIHAK PERTAMA/KETIGA), PERJANJIAN KEMUDAHAN (PINJAMAN PERUMAHAN/PEMBIAYAAN PERUMAHAN DAN SURAT KUASA WAKIL (PIHAK PERTAMA/KETIGA) KESEMUANYA BERTARIKH 19HB JUN 2023

AFFIN BANK BERHAD (CO. NO. 197501003274/25046-T)
SRITHARAN A/L MOHAN KUMAS (NO. K/P: 820711-08-5631)

Antara
Dan

PEMEGANG SERAH HAK/BANK
PIHAK PENYERAH HAK/ PEMINJAM

Dalam menjalankan hak dan kuasa yang telah diberikan kepada Pihak Pemegang Serahhak/Bank Dibawah Surat Ikatan Penyerahan Hak Perjanjian Jual dan Beli (Pihak Pertama/Ketiga), Perjanjian Kemudahan (Pinjaman Perumahan/Pembiayaan Perumahan dan Surat Kuasa Wakil (Pihak Pertama/Ketiga) kesemuanya bertarikh 19hb Jun 2023 diantara Pihak Pemegang Serahhak/Bank dan Pihak Penyerahhak/Peminjam yang diperbuat dalam perkara diatas, adalah dengan ini diisytiharkan bahawa Pihak Pemegang Serahhak/Bank tersebut dengan bantuan Pelelong yang tersebut dibawah:-

AKAN MENJUAL HARTANAH YANG DIHURAIKAN DI BAWAH SECARA

LELONGAN AWAM

LELONGAN SECARA ATAS TALIAN

**PADA 24HB JUN, 2026 BERSAMAAN HARI RABU, JAM 11.00 PAGI,
DI ARENAAUCTIONEERS.COM**

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(Pendaftaran pembida dan pembayaran deposit hendaklah di buat sekurang-kurangnya satu (1) hari bekerja sebelum tarikh lelongan, selewat-lewatnya pada pukul 5 petang; Jika tidak, Pelelong mempunyai hak untuk menolak pendaftaran. Pembida dikehendaki untuk log masuk pautan yang diberikan dan diminta bersedia sebelum masa lelongan.) Bakal pembeli adalah selanjutnya tertakluk kepada terma-terma dan syarat-syarat di arenaauctioneers.com

- NOTA:**
- (1) Sebelum jualan lelong, bakal-bakal pembeli adalah dinasihatkan:-
 - (i) memeriksa harta tersebut
 - (ii) membuat carian hakmilik secara rasmi
 - (iii) membuat pertanyaan dengan Pihak Pemaju/Tuan Punya dan/atau pihak-pihak lain yang berkenaan
 - (iv) membuat pertanyaan dengan Pihak Pemaju/Tuan Punya dan/atau pihak-pihak lain yang berkenaan
 - (2) Isi kandungan ini adalah berdasarkan maklumat yang dianggap boleh dipercayai. Oleh kerana ia diperolehi daripada pihak ketiga, maka kami tidak dapat memastikan bahawa ianya adalah tepat atau lengkap. Oleh itu, ia adalah tertakluk kepada kesilapan atau apa-apa maklumat yang tertinggal.

BUTIR-BUTIR HAKMILIK

No. Hakmilik Strata/Lot	: Geran Mukim 9672/M1B/23/957, Lot 82478
Mukim/Daerah/Negeri	: Batu / Kuala Lumpur / Wilayah Persekutuan Kuala Lumpur
No. Petak Pemaju	: Petak No. B-22-12, (Jenis A), Tingkat No. 22, Bnagunan No. Blok B bersama dengan Petak Aksesori No. A1337, A1379 & A2978, Residensi Minest
Pegangan	: Selama-lamanya
Keluasan Tanah	: 1239 k.p / 115.11 m.p
Kategori Kegunaan Tanah	: Bangunan
Syarat Nyata	: Tanah ini hendaklah digunakan untuk bangunan kediaman bagi tujuan pangsapuri sahaja
Sekatan Kepentingan	: Tiada
Penjual	: MI NEST DEVELOPMENT SDN BHD (1075392-X)
Pemaju	: MI NEST DEVELOPMENT SDN BHD (1075392-X)
Pemilik Berdaftar	: MI NEST DEVELOPMENT SDN BHD (1075392-X)
Pemilik Benefisial	: SRITHARAN A/L MOHAN KUMAS (NO. K/P: 820711-08-5631)
Bebanan	: Diserahhak kepada AFFIN BANK BERHAD (Co. No. 197501003274/25046-T)

LOKASI DAN PERIHAL HARTANAH:

Hartanah tersebut adalah **seunit pangsapuri** yang beralamat pos **Unit No. B-22-12, Residensi Minest, No. 62, Jalan Sinar Sentul 4, Sentul, 51000 Kuala Lumpur, Wilayah Persekutuan Kuala Lumpur**.

HARGA RIZAB:

Hartanah tersebut akan dijual dalam keadaan "seperti mana sedia ada" dan tertakluk kepada satu harga rizab sebanyak **RM540,000.00 (RINGGIT MALAYSIA: LIMA RATUS EMPAT PULUH RIBU SAHAJA)**, tertakluk kepada syarat-syarat jualan melalui Suratikatan Penyerahhakan daripada Pemegang Serahhak/Pemberi Pinjaman tertakluk kepada persetujuan diperolehi oleh penawar yang berjaya ("Pembeli") daripada pihak berkuasa yang berkaitan, jika ada, termasuk semua terma, syarat, ketetapan dan perjanjian-perjanjian yang telah dan boleh dikenakan oleh pihak berkuasa yang berkenaan. **Pembahagian atas apa-apa tunggakan cukai tanah, cukai pintu dan caj penyelenggaraan SAHAJA yang sah iaitu tidak dibayar sehingga maksimum 6 tahun sebelum tarikh lelongan yang berjaya berkenaan dengan harta itu sehingga tarikh jualan hendaklah dibayar oleh Bank selepas penerimaan hasil lelong penuh dan apa-apa jumlah wang yang kena dibayar selepas tarikh jualan akan ditanggung oleh Pembeli. Pembeli adalah digesa untuk mengemukakan tuntutan mereka kepada Bank dalam tempoh enam puluh (60) hari dari tarikh pembayaran baki harga belian (atau sebarang tempoh lanjutan yang dibenarkan oleh Bank); apa-apa tuntutan berikutnya yang dibuat di bawahnya tidak akan dilayan oleh Bank dan yang sama hendaklah ditanggung oleh Pembeli semata-mata. Pihak Pemegang Serah Hak / Pemberi Pinjaman tidak akan bertanggungjawab untuk membuat pembayaran atau menolak daripada hasil jualan apa-apa utiliti / bil yang belum dijelaskan yang berhubungan dengan harta benda itu iaitu caj air, elektrik, telefon, gas atau pembetulan, caj pentadbiran dan utiliti lain.**

Segala fi, kos dan caj lain yang berkaitan dengan pindahmilik dan penyerahan harta termasuk apa-apa kos berbangkit bagi projek terbengkalai (jika ada) juga akan ditanggung semata-mata oleh Pembeli. Pembeli yang berminat hendaklah membuat pertanyaan sendiri berkenaan dengannya dan Pembeli hendaklah dianggap mempunyai pengetahuan penuh tentang perkara yang sama. Pembeli dalam talian juga tertakluk kepada Terma-terma dan Syarat-syarat Dalam Talian yang terkandung dalam arenaauctioneers.com.

DEPOSIT:

Bagi penawar-penawar yang berminat adalah dikehendaki mendeposit **sepuluh peratus (10%)** daripada Harga Rizab atau mana-mana jumlah melebihi 10% daripada harga belian atau minimum **RM2,500.00** yang mana paling tinggi ("Deposit Bidaan") dalam bentuk bank draf di atas nama **AFFIN BANK BERHAD**, sekurang-kurangnya **SATU (1) HARI BEKERJA SEBELUM TARIKH LELONGAN**, selewat-lewatnya pada pukul 5 petang dan baki wang belian hendaklah dibayar oleh Pembeli dalam tempoh sembilan puluh (90) hari dari tarikh jualan kepada **AFFIN BANK BERHAD**. Pembida dalam talian, sila rujuk Terma & Syarat di arenaauctioneers.com untuk cara-cara pembayaran deposit.

Untuk butir-butir lanjut, sila berhubung dengan **Tetuan Azra Salleh Akma & Co.,** Peguamcara bagi Pihak Pemegang Serah Hak/Bank di **21-1-1 & 21-1-2, Jalan Semarak Api 2, Block E, Diamond Square Business Centre, Off Jalan Gombak, 53000 Kuala Lumpur [No. Ruj: AS/LIT/ABB/1651/26] (No. Tel: 03-40237079)** atau Pelelong yang tersebut di bawah:-

ARENA AUCTIONEERS SDN. BHD. (201401016251 (1092337-X))

ADDRESS	: No. 20-2, Jalan Matahari AB U5/AB, Seksyen U5, Bandar Pengiriran Subang, 40150 Shah Alam, Selangor.
TEL NO.	: 03-7845 5890 / 03-7842 2137 / 03-7832 4047,
EMAIL	: aasb@arenaauctioneers.com ,
REF NO.	: AASB2775/AFFIN/184/030/26-N02(BK-2)

WEBSITE : arenaauctioneers.com
LOT ID : 73446

HJ ZULKANAIN BIN ABD KADIR
[Pelelong Berlesen]
012-327-5047

CONDITIONS OF SALE

1. THE PROPERTY AND THE RESERVE PRICE

- 1.1 The property, the particulars of which are as described in the Proclamation of Sale ('the Property') is put up for sale by way of public auction ('the Auction Sale') subject to the reserve price as stated in the Proclamation of Sale ('the Reserve Price').
- 1.2 The sale of the Property shall be on an 'as is where is basis' and subject to all encumbrances which may be now subsisting or which may hereafter come into existence.

2. THE AUCTIONEER

- 2.1 The auctioneer having conduct of the auction sale of the Property shall be as named in the Proclamation of Sale and/or an Auctioneer so appointed/engaged by the Auctioneer or the Auctioneer's firm ('the Auctioneer').
- 2.2 Where applicable, the Auctioneer shall not in any manner or for any reason whatsoever be deemed to be an agent of the bank of the auctioned property, **AFFIN BANK BERHAD (CO. NO. 197501003274/25046-T)** ('the Bank').

3. BIDDING DEPOSIT

- 3.1 Prior to the commencement of the Auction Sale, all persons or parties intending to bid for the Property at the Auction Sale shall deposit **one (1) working day before auction sale** with the Auctioneer a valid bank draft or cashier's order drawn in favour of the Bank for a sum equivalent to ten per cent (10%) of the Reserve Price or any sum exceeding 10% of the purchase price or a **minimum of RM2,500.00 whichever is higher, or remit the same through online banking instant transfer latest by 5 PM, at least ONE (1) WORKING DAY BEFORE THE AUCTION DAY** ('the Bidding Deposit'). Online bidders are further subject to the Online Terms & Conditions on arenauctioneers.com.
- 3.2 The Auction Sale shall be deemed to have commenced upon being so declared by the Auctioneer.
- 3.3 Any party failing to deposit the Bidding Deposit with the Auctioneer within the time and in the manner specified in paragraph 3.1 hereto shall not be permitted to participate in the bidding at the Auction Sale.
- 3.4 Notwithstanding anything herein stated the Bank shall be permitted to bid at the Auction Sale without having to deposit with the Auctioneer the Bidding Deposit.

4. BIDDERS

- 4.1 All intending bidders shall be required to verify their identities by producing for inspection by the Auctioneer their identity cards prior to the commencement of the Auction Sale, failing which they shall not be entitled to participate in the bidding.
- 4.2 In the event that the Auctioneer in his absolute discretion so request, the intending bidders shall deposit with the Auctioneer a photocopy of their respective identity cards.
- 4.3 In the event that an intending bidder is bidding at the Auction Sale on behalf of another party, such intending bidder ('the Agent') shall be deemed to be an agent of the party for whom he is bidding the Property for.
- 4.4 For Bumiputra lot or if the sale is restricted to Bumiputra only, only Bumiputra is allowed to purchase or to bid or to act for and on behalf of the bidder. For Malay Reserve Land or Native Land, only Malay or Native is allowed to purchase or to bid or to act for and on behalf of the bidder. For all other special quota lot, only the race/party identified in the special quota lot therein is allowed to purchase or to bid or to act for and on behalf of the bidder.
- 4.5 A foreign citizen or foreign company is only allowed to bid for the Property subject to the prevailing legal requirements, guidelines and/or existing policies and if the bid is successful, the sale is subject to the foreign citizen or foreign company applying and obtaining at his/her/its own costs the unconditional consent of the Foreign Investment Committee (if any) and/or relevant State Authorities to the said sale in accordance with the terms stated.
- 4.6 Prior to the commencement of the Auction Sale the Agent shall disclose to the Auctioneer that he, the Agent, will be bidding the Property in his capacity as Agent for the Purchaser. The Agent shall further prior to the commencement of the Auction Sale disclose to the Auctioneer the identity of the Purchaser.
- 4.7 The Agent shall deposit with the Auctioneer prior to the commencement of the Auction Sale such instrument of authority from the Principal authorizing the Agent to bid at the Auction Sale. The Auctioneer shall have the absolute discretion to determine whether the instrument of authority is acceptable to the Auctioneer to permit the Agent to bid at the Auction Sale. The decision of the Auctioneer in this respect shall be final.

5. PERMITTED PURCHASER

A person is only allowed to bid and or purchase the Property subject to the following: -

- 5.1 A person who has not reached the age of majority as defined under the Age of Majority Act 1971 (Act 21) (which is 18 years of age) as at the date of the Auction Sale or an undischarged bankrupt shall not be permitted to bid in his personal capacity or act as Agent of the Principal at the Auction Sale.
- 5.2 Notwithstanding whether it is expressly stated in the Proclamation of Sale, in the event that the developer of the Property ('the Developer') and/or the proprietor of the master title on which the Property is erected ('the Proprietor/Landowner') or applicable laws or regulations affecting the Property imposes the condition that the Property can only be sold to an individual or certain categories of persons or body corporate e.g. a Malay, a Bumiputra or a Malay Company or Bumiputra Company ('the Purchaser'), then the Property shall only be sold to the Purchaser.
- 5.3 All intending bidders at the Auction Sale shall be deemed to have made all the relevant enquiries and have received independent legal advice on all restrictions affecting the Property and are further deemed to have been fully satisfied that they fall within the category of the Purchaser.
- 5.4 If the sale is restricted to individual and not to be sold to company, society, firm or body corporate as specified by the Developer and/or Proprietor and/or State Authorities and/or relevant bodies, the Property shall be sold to the individual person only.

6. THE BIDDING

- 6.1 Each new bid shall not be less than the immediately preceding bid.
- 6.2 All increments in the bids shall be not less than the incremental amount as fixed by the Auctioneer at the Auction Sale.
- 6.3 The Auctioneer shall have the right to refuse any bid.
- 6.4 A bid once made shall not be withdrawn.
- 6.5 If any dispute should arise as to any bidding, the Property shall at the option of the Auctioneer be put up again for sale at the last undisputed bidding price and the Auctioneer shall at the Auction Sale decide on the dispute and such decision by Auctioneer shall be final.
- 6.6 Subject to the Reserve Price, the highest bidder for the Property at the Auction Sale shall be declared by the Auctioneer to be the purchaser ('the Purchaser').
- 6.7 Each bid will be called for 3 times, "First Calling", "Second Calling", "Final Call". Bidders may submit their bid at any of these stages of biddings.

We reserve the right to change any aspect of this notice, listing or any of the terms and the conditions as and when deemed necessary without prior notice

6.8 When system displays "No More Bids", no further bids will be accepted by the Auctioneer, whether on-site or through the Auctioneer's website.

6.9 The bidder with the highest bid shall be declared as successful bidder upon the fall of hammer. No bid shall be less than the previous bid and each bid shall be increased by a minimum amount to be determined by the Auctioneer at the time the Property is put up for sale and no bidding shall be withdrawn or retracted. Should there be any withdrawal or retraction from the registered bidder(s) or the highest bidder before or after the fall of the hammer, the bidding deposit ("Bidding Deposit") shall be forfeited to the Assignee/Bank and the Property shall be at the option of the Auctioneer be put up for sale again or the Auctioneer may decide to adjourn the auction sale to another date. **Online bidders are further subject to the Online Terms & Conditions on arenaauctioneers.com.**

7. WITHDRAWAL OF SALE AND RESALE

7.1 The Bank at its absolute discretion through the Auctioneer reserves the right to suspend, withdraw, postpone and/or call off the Auction Sale of the Property for any reason whatsoever at any time before the fall of the hammer.

7.2 The Bank further reserves the right to sell the Property withdrawn at any time or times at the Bank's absolute discretion upon such price and terms and conditions as the Bank deems fit.

8 THE PURCHASER AND PAYMENT OF PURCHASE PRICE

8.1 Immediately after the fall of the hammer and upon being declared the successful purchaser of the Property, the Purchaser shall execute the memorandum attached hereto ('the Memorandum').

8.2 The signed Memorandum together with these conditions of sale and the Proclamation of Sale shall in their entirety form the contract for the sale and purchase of the Property ('the Contract of Sale').

8.3 The last bid which is the highest bid accepted by the Auctioneer and upon which the Property is sold to the Purchaser shall be the purchase price for the Property ('the Purchase Price').

8.4 Upon successful bid of the property by the bidder, the Bidding Deposit deposited by the bidder pursuant to clause 3.1 shall be paid to the Bank immediately upon execution of the Contract of Sale ('the Purchase Deposit').

8.5 In the event that the Purchase Price is higher than the Reserve Price, the Purchaser shall immediately deposit with the Auctioneer as stakeholder a sum equivalent to the difference between Purchase Deposit and the Bidding Deposit ('the Purchase Deposit Shortfall') either in cash or by way of a valid bank draft or cashier's order drawn in favour of the Bank which together will form the Purchase Deposit.

8.6 The Auctioneer shall upon receipt of the Purchase Deposit release the said sum, bank draft and/or cashier's order to the Bank.

8.7 In the event that the Purchaser shall fail to deposit the Purchase Deposit Shortfall or shall fail to execute the Memorandum for any reason whatsoever or in the event of the bank draft and/or cashier's order for the Bidding Deposit and/or the Purchase Deposit Shortfall is dishonoured for any reason whatsoever when presented by the Bank for payment, the Purchaser shall be deemed to have committed a breach of the terms of the Auction Sale and the consequences set out in paragraph 8.8 hereto shall ensue.

8.8 In the event that the Purchaser shall commit a breach, the Bidding Deposit shall be forfeited absolutely to the Bank and the Bank may in its absolute discretion upon such terms and conditions and at such time or times the Bank deems fit put the Property up for resale. The Bank shall be further entitled to recover from the Purchaser all costs and expenses of, in connection with and resulting from such resale. The Purchaser shall be further liable to the Bank for any shortfall in the sale price obtained at the resale and the Purchase Price ('the Resale Shortfall'). A certificate duly signed by an authorized officer of the Bank as to amount of the Resale Shortfall and the costs and expenses of, in connection with resulting from such resale shall be accepted by the Purchaser as binding correct and conclusive for all purposes including for legal proceedings. The certified amount shall be paid by the Purchaser to the Bank not later than seven (7) days from the date of the demand made by the Bank.

8.9 Notwithstanding anything herein contained, the amount representing the difference between the Purchase Price and the Purchase Deposit ("Balance Purchase Price") shall be paid by the Purchaser directly to the Bank without any set-off not later than **NINETY (90) DAYS** from the date of the Contract of Sale ('the Due Date').

8.10 The Balance Purchase Price shall be paid to the Bank by way of bank draft or cashier's order drawn in favour of the Bank or E-Payment or any mode of payment which acceptable by the Bank.

8.11 Upon the written request by the Purchaser before the expiry date, the Bank in its absolute discretion may but shall be under no obligation to extend the Due Date for such period or periods the Bank deems fit ('the Extended Due Date').

8.12 The Purchaser shall have prior to twenty one (21) days of the Due Date, the Purchaser shall issue a written request to the Assignee applying for an extension of time and the Bank may in its absolute discretion (i) agree to grant the extension of time unconditionally, or (ii) **refuse the request, in which case the 10% of the successful bid shall be forfeited**, or (iii) agree to grant an extension of time subject to conditions (including but not limited to imposition of late payment interest/charges/compensation at such rate/amount as the Bank shall determine) without assigning any reasons whatsoever and such decision shall be binding on the Purchaser. The interest on late payment if imposed by the Bank may be in the form of advance payment of interest for the extension period or otherwise is final and not refundable.

8.13 In the event that the Purchaser for any reason whatsoever (save and except where it is due to the default of the Bank) fails to pay the Balance Purchase Price by the Due Date or the Extended Due Date, as the case may be, the Purchaser shall be deemed to be in breach of the Contract of Sale, and all monies paid to the Bank upon the execution of the Contract of Sale including the Purchase Deposit shall be forfeited absolutely by the Bank and the consequences as set out in paragraph 8.8 shall ensue.

8.14 TAXES

The sale of the subject property may be subject to the liability to pay taxes. In the event that taxes is payable under the transaction, the successful bidder shall pay the amount of taxes in addition to the Purchase Price.

8.15 As from the time of auction sale the property shall be at the sole risk of the Purchaser as regard any loss or damage of whatsoever nature or howsoever occurring. The Purchaser further shall not be entitled to any compensation whatsoever from any depreciation thereof arising from cause whatsoever

8.16 The Bank make no representation as to the ownership of furniture fitting and fixtures situated at the property which items may be on hire purchase, lease or deferred sale from third parties. In such a case the Bank accepts no liability for any payments which may be outstanding in respect thereof and the Property is sold subject thereto.

9. WHERE THE BANK IS THE PURCHASER

In the event that the Bank is the successful bidder and so declared the Purchaser by the Auctioneer, the Bank shall have the liberty to set off the Purchase Price against the amount due and owing to the Bank by the Assignor pursuant to the security documents referred to in the Proclamation of Sale.

10. CONSENT

10.1 It shall be the responsibility of the Purchaser to apply for consent from the Developer, the Proprietor/Landowner and/or other relevant authorities (if any) in respect of the sale, assignment and/or transfer of the Property to the Purchaser ('the Consent') and to keep the Bank or the Solicitors informed at all times of the developments. All fees, charges and expenses including administrative fees and/or legal fees in connection with or incidental to the application and/or endorsement of the assignment and/or the transfer of the Property by the Developer and/or Proprietor/Landowner shall be borne by the Purchaser.

10.2 The Purchaser shall forward or caused to be forwarded to the Solicitors for Assignee a copy of each of the applications referred to in clause above and a copy of each of the approvals and/or consents when obtained and keep the Solicitors for Assignee informed at all times the status of the

applications and the Purchaser and/or their solicitor shall fulfil all the granted subject to conditions imposed by the Developer.

- 10.3 In the event the consent from the Developer and/or other relevant authorities shall be granted subject to conditions which are not acceptable to the Bank, then the Bank shall be entitled to terminate the sale in its absolute discretion whereupon the sale shall be terminated and the Bank shall refund all monies paid by the Purchaser towards account of the purchase price free from interest less costs and fees incurred by the Bank in connection with or in relation to the sale herein and the Purchaser shall not be entitled to any claims and demands whatsoever against the Bank, the Solicitors, the Auctioneer or any party on account thereof.

11. FAILURE TO OBTAIN CONSENT/SALE SET ASIDE

- 11.1 In the event of the sale being set aside for any reason whatsoever whether by the Bank or by an Order of Court or consent cannot be obtained for any reason not attributable to the default, neglect and/or omission on the part of the Purchaser and/or the Purchaser's agent and/or the Purchaser's solicitors, the Contract of Sale shall with the written consent of the Bank, be deemed rescinded.
- 11.2 Upon such rescission the Bank shall refund to the Purchaser free of interest all monies received by the Bank from the Purchaser towards account of the Purchase Price in exchange for the return of all documents (if any) which may have been forwarded by the Bank to the Purchaser and/or the Purchaser's agent and/or the Purchaser's solicitors. Upon payment by the Bank in this clause, the Purchaser shall have no other or further claims, demands whatsoever in nature and howsoever caused against the Bank, the Solicitors and the Auctioneer or their servants or agents.

12. COMPLETION

- 12.1 As soon as practicable after receipt in full by the Bank of the Balance Purchase Price together with all interest on late payment (if any), the Bank shall execute or caused to be executed in favour of the Purchaser an assignment of all rights, title, interest and benefits under the principal sale and purchase agreement entered into between the Developer and/or the Proprietor/Landowner and the original purchaser and over the Property ('the Deed of Assignment').
- 12.2 The Deed of Assignment shall be prepared by the Purchaser's solicitors upon such terms and conditions stipulated by the Bank at its absolute discretion. The said documents shall be forwarded to the Bank within thirty (30) days from the date Bank received full balance of auction price. In the event such relevant documents are submitted after the said period the Bank shall not be held liable for any claims whatsoever by developer or relevant authorities due to the delay in execution of the documents.
- 12.3 The Bank shall upon such execution forward to the Purchaser or the Purchaser's financier or their solicitors, as the case may be, the principal sale and purchase agreement and the previous security documents relating to the Property which may be in the possession of the Bank ("the Related Documents").
- 12.4 The Bank shall deliver such original or duplicate or certified true copy(ies) of the Related Documents as in the Bank possession to the Purchaser or the Purchaser's financier or their solicitors as the case may be.
- 12.5 The Purchaser shall bear all costs and expenses including but not limited to the legal, stamp and registration fees of and incidental to the perfection of the Deed of Assignment and in the event of the individual title/strata title has been or is issued, the transfer of the title over the Property to the Purchaser.

13. DESCRIPTION OF THE PROPERTY

- 13.1 The Property as referred to in the Proclamation of Sale shall be deemed to have been correctly and sufficiently described.
- 13.2 All intended bidders including the Purchaser shall be deemed to have sought independent legal advice, made necessary enquiries, searches and inspection of the Property and is satisfied with the identity, description, state and condition of the Property.
- 13.3 In the event of any error, misstatement, omission and/or misdescription of any kind relating to the Property in the Proclamation of Sale or any other documents, such error, misstatement, omission and/or misdescription shall not in any manner annul the sale, nor shall there be any adjustment of the Purchase Price nor shall compensation be allowed nor shall the Bank be open to any liability of any form.
- 13.4 If the land or floor area of the property is found to exceed that as described and additional payment is imposed for the excess area by the Developer and/or relevant authorities, then such additional payment shall be solely and absolutely borne and paid by the Purchaser.
- 13.5 If the land or floor area of the property is found to be less than as described, any claim for the reduced area shall be undertaken solely by the Purchaser against the Developer and/or such party and neither the Assignee/ Bank, the Assignee/ Bank's solicitors nor the Auctioneer shall in any way responsible or liable for such claim. The auction sale herein shall not be annulled and there shall not be any adjustment of the Purchase Price as a result of such shortfall in the area of the Property.

14. NO VACANT POSSESSION

- 14.1 The Purchaser shall upon full payment of the Balance Purchase Price together with all interest on late payment (if any) be entitled at his own costs and expenses to take possession of the Property.
- 14.2 The Bank shall not be under any obligation whatsoever to deliver vacant possession of the Property or to forward to the Purchaser or any party any keys to the Property.
- 14.3 The Property is sold subject to all existing easements, leases, tenancies, occupiers, charges, caveats, previous Sale and Purchase, previous assignment, covenants, liabilities subsisting thereon or thereover and the Purchaser shall be deemed to have full knowledge of the state and condition of the Property.

15. OUTGOINGS

- 15.1 **Apportionment on any arrears of quit rent, assessment rate and maintenance charges ONLY which is lawfully due i.e which is unpaid for up to maximum 6 years preceding the successful auction date in respect of the property up to the date of sale shall be paid by the Bank upon receipt of full auction proceeds and any such sums due and payable after the date of sale shall be borne by the Purchaser. Successful Bidder is urged to submit his/her claim to the Bank within sixty (60) days from the date of payment of balance purchase money (or any extended period allowed by the Bank); any subsequent claims made thereunder will not be entertained by the Bank and the same shall be borne by the Purchaser solely. The Assignee/Lender shall not be liable to make payment or to deduct from the proceeds of sale any outstanding utilities/bills relating to the property namely water, electricity, telephone, gas or sewerage charges, administration charges and other utilities.**

All other fees, costs and charges relating to the transfer and assignment of the property including any revival cost for abandoned project (if any) shall also be borne solely by the Purchaser. Intending Purchaser shall make his own inquiries in respect thereof and the Purchaser shall be deemed to have full knowledge of the same.

- 15.2 Notwithstanding any contrary terms and conditions which may be imposed by the Developer on the Bank in granting the consent to the sale herein (if applicable), it is hereby agreed that **any arrears of quit rent, assessment rate and maintenance charges ONLY** which is lawfully due i.e. which is unpaid for up to a maximum of 6 years preceding the successful auction date (the Bank reserves the right to refuse to pay any sums not lawfully due and/or those sums that are time barred) to any relevant authority or the Developer up to date of auction sale of the subject property shall be paid by the Bank out of the balance purchase money and in any event upon the Bank's receipt of the balance purchase money in cleared funds.

- 15.3 The **above outstanding charges** shall only be paid to the Purchaser by the Bank PROVIDED ALWAYS: -

- 15.3.1 that the Bank is in receipt of the balance purchase **money within ninety (90) days from the date of the auction (or any extended period allowed by the Bank);**
- 15.3.2 that the Purchaser has duly settled the outstanding charges on its own and **the relevant receipts of the outstanding charges duly paid are forwarded to the Bank within sixty (60) days from the date of payment of balance purchase money (or any extended period**

allowed by the Bank):

- 15.3.3 In the event such **relevant receipts of the outstanding charges duly paid** are not submitted **within sixty (60) days from the date of payment of purchase money (or any extended period allowed by the Bank)**, any subsequent claims made thereunder will not be entertained by the Bank and the same shall be borne by the Purchaser solely.
- 15.4 Herein shall imposed obligations on the part of the Purchaser to pay all outstanding utilities bills namely water, electricity, telephone, sewerage, interest, fines, penalties or other charges of personal nature due and payable by the Assignor to the relevant authority or the Developer. The Purchaser shall bear the Administrative Fee to the Developer and pay all fees and expenses including but not limited to all legal fees, stamp duty and the registration fees in connection with, incidental to or pursuant to this Memorandum and the Assignment and all other documents necessary for effecting the transfer or assigning the beneficial ownership in the property to the Purchaser.
- 15.5 In the event there is any balance money by way of outstanding progressive payments payable or any other claims and due to the Developer under the principal Sale and Purchase Agreement, the Purchaser shall be liable to pay to the Developer on its own and there shall be no deduction whatsoever from purchase price.
- 16. RISK**
- 16.1 With effect from the date of the Contract of Sale, solely as between the Purchaser and the Bank, the risk relating to the Property shall be that of the Purchaser as regard to loss and/or damage (full or partial) of whatsoever nature or howsoever occurring to the Property.
- 16.2 The placement of risk as herein provided shall be solely as between the Purchaser and the Bank for the purpose of determining the liability of the parties to the Contract of Sale and shall not in any manner affect or intended to affect the insurance policy which may be subsisting or which may be taken up to cover the Property.
- 16.3 Unless expressly provided herein, the Bank, the Solicitors and the Auctioneers or any of them or their respective agents or servants shall under no circumstances be liable to any bidders or the Purchasers, including but not limited to liability in tort, in relation to any matter or thing arising out of or in connection with, or in respect of the sale of the Property whatsoever and howsoever caused or arising.
- 17. NO ASSIGNMENT/NOMINATION**
- 17.1 The Purchaser shall not without the written consent of the Bank, be entitled to nominate a third party to be the purchaser or assignee of the Property nor shall the Purchaser be entitled to assign his rights, title, interest and benefits under the Contract of Sale to any party.
- 17.2 The Bank's decision to withhold or to grant the consent or to permit or disallow nomination and/or assignment by the Purchaser shall be at the absolute discretion of the Bank.
- 18. GOVERNMENT ACQUISITION**
- 18.1 The Bank has not received any notification of any acquisition by the acquiring authority of the whole or any part of the Property. In the event of any such acquisition or intended acquisition the sale of the Property shall not be annulled nor there be any adjustment or abatement of the Purchase Price. In this respect, upon full payment of the Purchase Price by the Purchaser to the Bank together with all interest on late payment (if any) all compensation which may be paid by the acquiring authority shall belong to the Purchaser.
- 19. TIME OF THE ESSENCE**
- 19.1 Time wherever mentioned herein shall be of the essence.
- 19.2 Notwithstanding that time mentioned herein may be extended from time to time, time shall remain of the essence for and after each extension.
- 20. LANGUAGES**
- 20.1 The Proclamation of Sale, these conditions of sale and the Memorandum may have been translated and published in different forms and languages. In the event of any discrepancy, misstatement, omission or error appearing in the various forms or languages, this English version shall prevail.
- 21. DEFINITION**
- 21.1 All headings used herein shall be for ease of reference only and shall not affect the interpretation of these conditions of sale, the Memorandum or the Proclamation of Sale.
- 21.2 All references to the singular shall include the plural and all references to the masculine gender shall include the feminine gender.
- 22. SEPARATE DOCUMENT OF TITLE**

In the event that the separate document of title to the Property has been or is issued whether prior to, on or after the auction sale.

- (a) The Bank /Bank shall not be required to register its charge(s) nor to procure a memorandum of transfer in favour of the Purchaser from the Developer or the Proprietor (as the case may be);
- (b) If there are any restrictions in interest affecting the Property, the purchaser shall comply with the restriction in interest and ensure that the sale is completed within the time period stipulated in Clause 8.9 above; and
- (c) (i) Upon and subject to the payment in full of the Balance Purchase Price in accordance with Clause 8.9 above and all other moneys (if any) payable by the Purchaser in accordance with the term and conditions contains herein these Conditions Of Sale and upon and subject to the Purchaser at the Purchaser's own absolute responsibility and costs and expenses obtaining the confirmation and/or consent as applicable from the developer and/or the Proprietor, the relevant authorities and/or bodies, as the case may be for sale and purchase and/or the transfer of the Property from the Bank/Bank to the Purchaser as may be required;
- (ii) Where the Developer (and/or the Proprietor as the case may be) and/or the relevant authorities and/or bodies is/are agreeable to a direct transfer the title in the Property to the Purchaser , it shall be the Purchaser's own absolute responsibility and the Purchaser's sole and absolute costs and expense(including and not limited to legal fees , stamp duty, registration fees and such moneys payable and/or owing to the Developer and/or such relevant authorities and/or bodies)to prepare and obtain from the Developer , the proprietor or such relevant authority or body, the Developer's the Proprietor's or such relevant authority's or body's execution of the Memorandum of Transfer in respect of the Property as a direct transfer in favour of the Purchaser as transferee and all relevant documents in support for the registration of the said Memorandum of Transfer the Bank/Bank, The Bank/Bank's solicitors, the Auctioneer and their respective servants or agents do not in any way, form or manner make any representation or warranty whatsoever in respect of any of the aforesaid and shall not in any way be responsible or liable to the Purchaser for any of the same (including and not limited to obtaining the said Memorandum of Transfer and/or documents in favour of the Purchaser and/or any delay in obtaining any of the same); and
- (iii) Where the Developer (and/or the Proprietor as the case may be) and/or the relevant authorities and/or bodies is/are not agreeable to a direct transfer of the title in the Property to the Purchaser , it shall be the Purchaser's own absolute responsibility and at the Purchaser's sole and absolute costs and expenses (including and not limited to legal fees , stamp duty, registration fees and such moneys payable and /or owing to the Developer and/or such relevant authorities and/or bodies)to prepare and submit to the Bank /Bank's solicitors for the Bank/Bank's execution, the Memorandum of Transfer in respect of the Property in favour of the Purchaser as transferee. In such situation, the Purchaser acknowledges and admits that the Purchaser shall not be entitled to and shall not present the Memorandum of transfer in favour of the Purchaser as transferee for registration at the relevant land office/ registry until and unless the Memorandum of transfer in respect of the Property in favour of the Assignor as transferee shall have first been duly executed by the relevant persons and delivered to the Bank/Bank's solicitors for the Bank/Bank's or the Bank/Bank's solicitors further action. The Purchaser shall be absolutely responsible for and shall be solely and absolutely liable for all fees, costs and expenses in connection with the preparation , stamping and registration of the memorandum of transfer in favour of the Assignor as

transferee(including and not limited to the payment of any moneys payable or owing to the Developer and/or the relevant authorities and/or bodies)The memorandum of transfer in favour of Assignor as transferee shall only be delivered to the Purchaser of the Purchaser's solicitors upon full payment of the Balance Purchase Price in accordance with the provision of Clause 8.9 above and all other moneys(if any) payable by the Purchaser in accordance with the terms and conditions contained herein there Conditions of Sale the Bank/Bank's Solicitors, the Auctioneer and their respective servants or agents do not in any way, form or manner make any representation or warranty whatsoever in respect of any of the aforesaid matters and shall not in any way be responsible or liable to the Purchaser for any of the same (including but not limited to any delay that may arise in the delivery to the Purchaser or the Purchaser's solicitors the Memorandum of transfer in favour of the Assignor as transferee and/or Memorandum of Transfer in favour of the Purchaser as transferee.

23. Online bidders are further subject to the Online Terms & Conditions on arenaauctioneers.com.

AASB COPY

ONLINE TERMS AND CONDITIONS - ARENA AUCTIONEERS SDN BHD

The Terms and Conditions specified herein shall govern all users of arenaauctioneers.com ("ARENA AUCTIONEERS SDN BHD website"). ARENA AUCTIONEERS SDN BHD has agreements with various individuals and corporations, etc. ("Auctioneers") to market and advertise certain properties and/or financial instruments ("Property" or "Properties") through ARENA AUCTIONEERS SDN BHD website. All properties offered on ARENA AUCTIONEERS SDN BHD website shall be offered subject to the Bank's approval of the final terms and conditions.
ALL USERS MUST AGREE TO THE TERMS BEFORE BIDDING

1. REQUIREMENT ON ELIGIBILITY OF E-BIDDERS

- 1.1 Parties who are intent to participate in public auction ("E-Bidders") may do so by log in on to ARENA AUCTIONEERS SDN BHD website and register as a user.
- 1.2 E-Bidders who register as a user to participate in the public auction via ARENA AUCTIONEERS SDN BHD website shall:
 - (a) Be of 18 years and above, in a rational mind and not a bankrupt person.
 - (b) For a company, must be incorporated under the laws of Malaysia and must not be in liquidation;
 - (c) Be able to take, fulfil and perform all necessary actions, conditions and matters (including obtaining any necessary consents) in terms of law to enable E-Bidders to participate in the public auction and complete the purchase in the event of successful bid.
- 1.3 E-Bidders eligibility requirements are also subject to the existing Federal and State legal provisions. Non-Malaysian E-Bidders or companies are also advised to take note of restrictions applicable on foreign purchase imposed by relevant authorities.
- 1.4 ARENA AUCTIONEERS SDN BHD services are available only to individuals who can form legally binding contracts under applicable law. ARENA AUCTIONEERS SDN BHD services are not available to minors or to previously suspended ARENA AUCTIONEERS SDN BHD users. If you register as a business entity, by placing a bid, you represent that you have the authority to bind the entity to this Agreement and other related agreements.

2. PROPERTY VIEW & PROPERTY INFORMATION

- 2.1 Prospective bidders and interested parties may view general information about a property just by clicking the links to the property's Bid Page. Additional property information may also be available by clicking additional links located on a particular property's Bid Page.
- 2.2 If you elect to bid on a property, you must be registered to do so; however, you do not have to be registered in order to view bids for a property. All bids are open and displayed for public viewing unless otherwise noted. The Properties shall be offered through an Internet auction process with a specified opening and closing date. You can bid on properties either from a property's Bid Page or from your Current Registered Auction listing page, which can display multiple properties for a bidder to monitor or place bids on.
- 2.3 It is the sole and absolute responsibility of all intending E-Bidders at their own costs and expense, seek and obtain from the Developer and/or the relevant authorities or bodies, all confirmations and/or consents as may be required or as may be applicable in respect of the purchase of the Property and to satisfy themselves on the physical condition of the Property and all matters in connection with the Property prior to the bidding (including and not limited to verifying the identity, particulars, state and condition of the Property and the terms of the conditions and restrictions affecting the Property if any, whether or not the Property is reserved for Bumiputra or Malay only and/or is a low cost property, and matters relating to the ownership and transfer of the Property, the status of the separate document of title to the Property and its particulars, the liabilities including amounts of outstanding service or maintenance charges owing and other obligations pertaining to the Property and the E-Bidders' eligibility and qualification to purchase the Property). E-Bidders shall be deemed to have full knowledge of all of the matters aforesaid. The Auctioneers, the Assignee/Bank, the Assignee/Bank's solicitors and ARENA AUCTIONEERS SDN BHD website do not in any way make any representation or warranty in respect of any of the aforesaid and shall not in any way be responsible or liable to the E-Bidders in respect of any of the aforesaid.

3. REGISTRATION OF E-BIDDERS

- 3.1 Registration is currently free and is necessary to unlock many of the site's more useful features. E-Bidders shall provide true, current and accurate information to register as a user.
- 3.2 E-Bidders only need to register as user once and the registered E-Bidder's username and password can be used for the subsequent auctions on the ARENA AUCTIONEERS SDN BHD website.
- 3.3 E-Bidders should keep their account details strictly confidential and must not permit any third party to use or access the E-Bidders' account on behalf or otherwise. The E-Bidders shall be liable for any bids made via the E-Bidders' account.
- 3.4 E-Bidders may browse through the E-Bidding Dashboard on the website and select the properties they wish to bid.
- 3.5 By register and proceed with the bid in the Auction, the E-Bidders are deemed to have agreed and accepted the ARENA AUCTIONEERS SDN BHD website Terms & Conditions.
- 3.6 The Terms & Conditions shall be read together with all the Conditions of Sale attached to the Proclamation of Sale and shall be deemed to have been read and agreed upon by the E-Bidders prior to bidding. In the event of any inconsistency between the Terms & Conditions stated herein and the Conditions of Sale attached to the Proclamation of Sale, the Conditions of Sale attached to the Proclamation of Sale shall prevail.
- 3.7 Individual E-Bidders are required to upload copies of identification documents.
- 3.8 For E-Bidders who wish to purchase property under companies, need to provide certified copies of the Form 24; Form 44; Form 49 (or its equivalent forms under the Companies Act 2016); Memorandum and Articles of Association/Constitution of the company in compliance with Companies Act 2016 and a duly signed Board of Director's Resolution.
- 3.9 E-Bidders are responsible to identify the property properly and to ensure that the details and description of the Property are correct and accurate before bidding.
- 3.10 E-Bidders must make deposit payment as required under the Conditions of Sale attached to Proclamation of Sale, i.e. 10% of the reserve price. Payment of the deposit must be made **via local bank instant transfer** in favour of:

ARENA AUCTIONEERS SDN BHD (BIDDER DEPOSIT) Maybank 5620-8563-6477.

Evidence of the transfer must be uploaded and submitted before the registration closed.

- 3.11 E-Bidders are required to complete the registration process by inserting the relevant details and uploading the relevant documents including evidence of payment of the deposit onto the ARENA AUCTIONEERS SDN BHD website latest at least one (1) working day before the auction date.
- 3.12 Registration shall be subject to verification and approval of ARENA AUCTIONEERS SDN BHD website and subject further to deposit payment being cleared by the bank. Please take note that approval from ARENA AUCTIONEERS SDN BHD administrator may take at least one (1) working day and any improper, incomplete registration or late registration may be rejected at the sole discretion of the ARENA AUCTIONEERS SDN BHD website. ARENA AUCTIONEERS SDN BHD website will not bears any responsibility or assumes any liability in the event that the registration of a prospective E-Bidders is rejected and/or delayed for any reason whatsoever. In the event of the registration is rejected, the deposit paid (if cleared by the bank) shall be refunded to the same bank account from which the deposit transfer was made within **three (3) working days**.
- 3.13 If E-Bidders intending to authorize any person to execute the Memorandum/Contract of Sale upon successful bidding of the property shall do so by furnishing the following documents to the Auctioneer:
 - a) The person's NRIC copy (front and back); and
 - b) A copy of the relevant Letter of Authorization.
- 3.14 Upon approval and verification by ARENA AUCTIONEERS SDN BHD website and subject to the deposit payment being cleared by the bank, registered E-Bidders will receive email and E-Bidder ID from ARENA AUCTIONEERS SDN BHD which will be used on the auction day.
- 3.15 Bidding may be done via a computer, smart phone or any device with internet connection.
- 3.16 Once the E-Bidders have successfully registered for Online Bidding, the E-Bidders will be eligible to bid online.
- 3.17 The registration of an individual or company as a user on the ARENA AUCTIONEERS SDN BHD website shall not be taken as approval of eligibility of the intended E-Bidders to conclude the auction sale. Please refer to Part 1 above for requirements on the eligibility of E-Bidders.

4. ONLINE PUBLIC AUCTION BIDDING PROCEDURES

- 4.1 Bidding shall generally commence based on the sequence of the lot being shown on the ARENA AUCTIONEERS SDN BHD website. However the Auctioneer has the right to vary this sequence without notice.
- 4.2 It shall be the responsibility of registered E-Bidders to log in through the ARENA AUCTIONEERS SDN BHD website to wait for their turn to bid for the property lot in which they intend to bid. Different computers have different connection speeds, waiting until the last 5 or 10 seconds to place your bid is not recommended. The countdown clock on arenaauctioneers.com should be considered accurate but not exact.
- 4.3 The Auctioneer has the right to set a new reserve price in the event there is more than one (1) bidder. The reference to a "bidder" here includes E-Bidders as well as on-site bidders.
- 4.4 Auctioneer will announce the amount of incremental bid and the same will appear on the website prior to the commencement of the auction.
- 4.5 Auction starts when a flash message "Starts" is displayed, followed by a message stating "Auction started". Button BID NOW will appear when it is the time to bid.
- 4.6 Each bid will be called for three (3) times, "First Call", "Second Call", "Final Call". Registered E-Bidders may submit their bid at any of these stages of biddings by click the BID NOW Button.
- 4.7 Any bid by the registered E-Bidders shall not be withdrawn once entered.

We reserve the right to change any aspect of this notice, listing or any of the terms and the conditions as and when deemed necessary without prior notice

- 4.8 In the event of any clarification, disruption or special situation, the Auctioneer may at his sole discretion decide to pause, postpone and/or call off the public auction. The EBidders will be notified of this on the webpage.
- 4.9 When system displays "No More Bids", no further bids will be accepted by the Auctioneer, whether on-site or E-Bidders.
- 4.10 The on-site or E-Bidders with the highest bid shall be declared as successful bidder upon the fall of hammer.
- 4.11 The decision of the Auctioneer shall be final and binding on all on-site and/or E-Bidders.
- 4.12 Unsuccessful E-Bidders will have the deposit paid processed to be refunded to the same bank account from which the deposit transfer was made **within three (3) working days**.
- 4.13 The information shown and/or prompted on the screen handled by the Arena website regarding the public auction, particularly to the calling of bidding price during the bidding process and the declaration of successful bidder shall be final and conclusive.
- 5. POST ONLINE PUBLIC AUCTION SALE**
- 5.1 Any E-Bidders who successfully bids for the Property shall and undertake to sign the Memorandum/Contract of Sale and pay the difference between 10% of the purchase price and the deposit paid under clause 3.10 above ("differential sum") at the office of the Auctioneer **on the same day as the auction day**, failing which the deposit paid will be forfeited to the Assignee Bank and sale will be deemed cancelled/terminated and the property may be put up for subsequent auction without further notice to the said EBidders. The Auctioneer shall send the Memorandum/Contract of Sale for stamping and thereafter forward the same together with the deposit paid under clause 3.10 above and the differential sum paid under this clause (if any) to the Assignee Bank.
- 5.2 Any successful E-Bidders who is unable to attend to sign the Memorandum/Contract of Sale at the office of the Auctioneer may do so by authorising another person to sign the same on his behalf by inserting the particulars of the authorised person and print a copy of the letter of authorisation from ARENA AUCTIONEERS SDN BHD website. The authorised person shall provide the Letter of Authorisation signed by the successful E-Bidders together with a copy of his/her identity card to the Auctioneer.
- 5.3 In the event if there is inconsistency between the personal details and documents uploaded in the ARENA AUCTIONEERS SDN BHD website and the actual documents produced by the successful bidder, the Auctioneer shall have the right to refuse the successful bidder from signing the Memorandum/Contract of Sale and may at his discretion cancel the sale and proceed to put the property up for a new auction and the deposit paid shall be used to defray the cost of the auction and the balance (if any) shall be refunded to the successful E-Bidders.
- 5.4 The Memorandum/Contract of Sale, upon being signed by the Auctioneer, Solicitors for the Assignee Bank and successful bidder, shall be a conclusive evidence for the sale of the Property to the successful bidder.
- 5.5 The Memorandum/Contract of Sale may be signed in any number of counterparts, all of which taken together shall constitute one and the same instrument. Any party may enter into this Memorandum/Contract of Sale by signing any such counterpart and each counterpart may be signed and executed by the parties and shall be as valid and effectual as if executed as an original.
- 6. OTHER APPLICABLE TERMS & CONDITIONS**
- 6.1 All registered E-Bidders at ARENA AUCTIONEERS SDN BHD website undertake to fully comply with this terms and conditions herein. Further, all successful E-Bidders shall also be bound by the terms and conditions of the Conditions of Sale attached to the Proclamation of Sale.
- 6.2 ARENA AUCTIONEERS SDN BHD may from time to time add, modify, or delete any terms and conditions herein.
- 6.3 E-Bidders are responsible to ensure that their internet access is in good condition during the whole process of public auction until conclusion thereof. Unsatisfactory internet access may disrupt any bids made by the E-Bidders.
- 6.4 ARENA AUCTIONEERS SDN BHD or the ARENA AUCTIONEERS SDN BHD website shall not be liable for any disruptions, delays, failures, errors, omissions, or loss of transmitted information due to the unsatisfactory internet access or any online disruptions that may howsoever occur during the process of public auction at ARENA AUCTIONEERS SDN BHD website.
- 6.5 ARENA AUCTIONEERS SDN BHD website is owned and operated by ARENA AUCTIONEERS SDN BHD. The E-Bidders agree and accept that ARENA AUCTIONEERS SDN BHD or the Auctioneer or the Assignee Bank in which ARENA AUCTIONEERS SDN BHD acts for or their Solicitors or any of their respective servants or agents shall not be in any way liable for any claims or loss arising out of the use of the ARENA AUCTIONEERS SDN BHD website.
- 7. APPLICABLE LAWS AND JURISDICTION**
- 7.1 The usage of ARENA AUCTIONEERS SDN BHD website together with the terms and conditions hereof shall be governed by and construed in accordance with the laws of Malaysia.
- 7.2 The laws of Malaysia shall regulate and apply to all electronic transactions of immoveable property by public auction. Any legal actions or proceedings arising out of or in connection with the electronic transaction of immoveable property by public auction shall subject to the exclusive jurisdiction of the Courts of Malaysia.
- 8. CONFIDENTIALITY OF INFORMATION**
- 8.1 By accessing this ARENA AUCTIONEERS SDN BHD website, the E-Bidders acknowledge and agree that ARENA AUCTIONEERS SDN BHD website may collect, retain, or disclose the E-Bidder's information or any information by the E-Bidders for the effectiveness of services, and the collected, retained or disclosed information shall comply with Personal Data Protection Act 2010 and any regulations, laws or rules applicable from time to time.
- 8.2 E-Bidders agree to accept all associated risks when using the service in the ARENA AUCTIONEERS SDN BHD website shall not make any claim for any unauthorized access or any consequential loss or damages suffered.
- 8.3 E-Bidders shall be responsible for the confidentiality and use of password and not to reveal the password to anyone at any time and under any circumstances, whether intentionally or unintentionally.
- 8.4 E-Bidders agree to comply with all the security measures related to safety of the password or generally in respect of the use of the service.
- 8.5 E-Bidders accept the responsibility that in any event that the password are in the possession of any other person whether intentionally or unintentionally, the E-Bidders shall take precautionary steps for the disclosure, discovery, or the E-Bidders shall immediately notify ARENA AUCTIONEERS SDN BHD.
- 9. INTELLECTUAL PROPERTY**
- 9.1 Any information, contents, materials, documents, details, graphics, files, data, text, images, digital pictures, or any visual being displayed in the ARENA AUCTIONEERS SDN BHD website shall not be used or published either by electronic, mechanical, photocopying, recording or otherwise without the permission from ARENA AUCTIONEERS SDN BHD website.
- 9.2 In the event of any infringement of intellectual property rights under the Terms and Conditions herein, ARENA AUCTIONEERS SDN BHD website may use any available legal remedies which may include the demand for actual or statutory damages, solicitors' fees and injunctive relief.
- 10. MISCELLANEOUS**
- 10.1 In the event there is any inconsistency, discrepancy, misstatement or error appearing in translations of the particulars and the Terms and Conditions to any other language (if any), the Terms and Conditions in the English Language version shall prevail.
- 10.2 In the event of any inconsistency between the Terms & Condition stated herein and the Condition of Sales attached to the Proclamation of Sale, the Condition of Sale attached to the Proclamation of Sale shall prevail.
- 10.3 Words importing the singular number shall include the plural number and vice versa.